

Carrelha v. MEB Loan Trust VIII

Consolidated case assessment — what is established, what is alleged, what can be inferred, what remains unverified, and what to do next.

14	7	12	5
ESTABLISHED FINDINGS	CONTRADICTIONS TESTED	EVIDENCE GAPS	BLOCKING DECISIONS

COURT

N.D. Ga., Gainesville Division

JUDGES

Story, J. · Howard, M.J.

PREPARED

21 September 2026

CASE NO.

2:26-cv-00110-RWS-AWH

POSTURE AS OF

31 July 2026 (newest source)

SOURCE INTEGRITY

SHA-256 verified — no original altered

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Carrelha v. MEB Loan Trust VIII — Consolidated Case Assessment

MATTER ID	CARRELHA-2026
Court / case no.	U.S. District Court, N.D. Ga., Gainesville Division — 2:26-cv-00110-RWS-AWH (Story, J.; Howard, M.J.)
Posture as of	2026-07-31 (the newest source available); today is 2026-09-21
Objectives addressed	Procedural posture and deadlines; funding, ownership and payment-application evidence; whether the draft amended complaint cures the Doc. 35 defect
Specialist results consolidated	RESULT-...-001-docket · RESULT-...-002-evidence · RESULT-...-003-research
Sources relied on	SRC-001 through SRC-014 (13 registered; 5 read in full, 2 in part, 6 derived extracts)
Prepared	2026-09-21
Source integrity	SHA-256 baseline recorded for all 6 working extracts; <code>validate_matter_pack.py --hash-check</code> reports no alteration. No original document was opened for writing at any point.

0. Bottom line

Two things matter more than everything else in this report. First, **nobody** in this analysis can tell whether the case is still alive: an amended complaint was due 2026-08-21 under an order cautioning dismissal, that date passed 31 days ago, and no available source shows what was filed. Second, **the servicer's own ledger** does not contain the \$5,200.00 wire on which the pleading's central theory rests — and the same ledger documents a different, cleaner payment fact the pleading does not use.

The good news is real: on the controlling authority, the draft amended complaint's repleading method is the structure the Eleventh Circuit expressly approved in *Weiland*, so the specific defect Doc. 35 identified appears cured.

The pleading's remaining problems are curable in an afternoon.

The single most urgent action is a PACER pull. The second is asking the client for three documents.

1. What is established

Facts a court could find on this record, or has already found.

Procedural

#	FINDING	LABEL	SOURCE
E-1	Remand was denied; the case is securely in federal court. The prior-exclusive-jurisdiction argument "lacks merit," and any unanimity violation "is only a procedural defect, not a jurisdictional defect."	[COURT - FOUND]	SRC-010, Doc. 34 at 20, 23, 24–25
E-2	The preliminary injunction was denied as moot — not on the merits — because no sale was scheduled.	[COURT - FOUND]	SRC-010, Doc. 34 at 25
E-3	**Defendants must give Plaintiffs and the Court at least 60 days' advance notice before proceeding with foreclosure. ** A standing obligation with no expiry date.	[COURT - FOUND]	SRC-010, Doc. 34 at 26
E-4	The original complaint was a type-one shotgun pleading; Plaintiffs were directed to replead by 2026-08-21 ; the Clerk was directed to submit the case to the magistrate judge at that deadline's expiration.	[COURT - FOUND]	SRC-011, Doc. 35 at 7, 8, 9
E-5	Docs. 4 and 5 were denied as moot **with leave to seek dismissal of the amended complaint or to seek dismissal if Plaintiffs fail to amend as directed.**	[COURT - FOUND]	SRC-011, Doc. 35 at 9
E-6	Lendage, LLC "was not, and is not, a named defendant."	[COURT - FOUND]	SRC-010, Doc. 34 at 21
E-7	Dispositive motions remain with the magistrate judge for report and recommendation under Standing Order 18-01.	[COURT - FOUND]	SRC-010, Doc. 34 at 26

Factual, from the defendants' own records

#	FINDING	LABEL	SOURCE
E-8	Principal has been frozen at \$140,288.02 since 2023-12-21 and had not moved as of the 2026-03-10 print.	[VERIFIED]	SRC-013, p.3; totals p.5
E-9	Default-related charges — property inspection, title, attorney, foreclosure costs, certified mail, BPO/appraisal — ran continuously from 2024-05-06 through 2026-02-27, every one carrying a Due Date of 01/01/24.	[VERIFIED]	SRC-013, pp.1–3

E-10	Four web payments of \$1,899.56 were tendered 2025-05-02 through 2025-06-18. Three were reversed with NSF events. The fourth, 2025-05-17, was never reversed and still appears as the "Ending Unapplied Balance \$1,899.56" on the 2026-03-10 print — money received, held, and never applied, for roughly ten months, while foreclosure fees accrued.	[VERIFIED]	SRC-013, p.2; totals p.5
E-11	A single \$19,588.88 suspense credit was received 2023-09-13 and distributed the next day across due dates from 02/2023 to 10/2023 by roughly eighteen entries booked on one day.	[VERIFIED]	SRC-013, pp.3–4
E-12	Shellpoint's own letter states: "Newrez LLC dba Shellpoint Mortgage Servicing is a debt collector." A party admission going to FDCPA coverage.	[VERIFIED]	SRC-012
E-13	Shellpoint stated on 2026-03-02 that it had "been unable to determine that any error has occurred" and was "unable to accommodate your request to cancel or postpone the foreclosure sale date."	[VERIFIED]	SRC-012
E-14	The RESPA designated error-resolution address is "SLS Default - SMS P.O. Box 10826 Greenville, SC 29603-0826."	[VERIFIED]	SRC-012

Legal

#	FINDING	LABEL	SOURCE
E-15	Re-alleging a block of factual paragraphs at the head of each count, without incorporating preceding counts , is not a type-one shotgun pleading. <i>Weiland</i> : "looks, at first glance, like the most common type of shotgun pleading. But it is not. "	[LEGAL - CONCLUSION]	<i>Weiland</i> , 792 F.3d at 1324 (opened and read)
E-16	<i>Vibe Micro</i> 's one-chance-then-dismissal-with-prejudice rule is stated for litigants represented by counsel , and footnote 6 expressly "decide[s] and intimate[s] nothing about a party proceeding pro se."	[LEGAL - CONCLUSION]	<i>Vibe Micro</i> , 878 F.3d at 1308 & n.6 (opened and read)
E-17	Where federal claims are dismissed on non-merits Rule 8 grounds, supplemental state-law claims "should have been [dismissed] without prejudice as to refiling in state court."	[LEGAL - CONCLUSION]	<i>Vibe Micro</i> , 878 F.3d at 1308–09

2. What is alleged

Assertions not yet established — our own side's included, held to the same standard.

#	ALLEGATION	ASSERTED BY	CORROBORATION IN THE REVIEWED RECORD
A-1	A verified \$5,200.00 wire was remitted, received, and never credited.	Plaintiffs, SRC-001 Sec. IV.B ¶¶ 3–4	None. The servicer's 5-page ledger contains no \$5,200.00 entry in any column or period — and it records credits as small as \$71.78.
A-2	An executed Loan Modification Agreement was in force and was repudiated.	Plaintiffs, SRC-001 Sec. IV.C	None, and Doc. 34 at 3 n.4 records that loss-mitigation efforts "have been unsuccessful."
A-3	The bureaus were furnished a \$0.00 balance with \$25,495.00 past due (Nov. 2024) and a \$173,839.00 balance on a \$149,650.00 limit (Oct. 2025).	Plaintiffs, SRC-001 Sec. IV.E	No credit report, tradeline, or ACDV record is in the manifest. Partial cross-check: the servicer's principal was \$140,288.02 throughout, but total debt with interest and fees could approach the pleaded figure.

A-4	A Mercer Advisors offer worth \$600,000—\$800,000 was rescinded because of the reporting.	Plaintiffs, SRC-001 Sec. IV.F	None.
A-5	Multiple NOEs and RFIs were served on Shellpoint.	Plaintiffs, SRC-001 Sec. IV.D	None. The only documented channel is the CFPB portal, which is not the designated address at E-14.
A-6	The 2024 assignment is void and breaks the chain of standing.	Plaintiffs, SRC-001 Sec. IV.A	The instrument is not in the manifest. Doc. 34 at 3 n.4 records that the transfer occurred.
A-7	The account is due for the January 1, 2024 payment and was referred for foreclosure 2026-01-05 .	Shellpoint, SRC-012	Consistent with the ledger's charge pattern, but this is the defendant's assertion, not a finding.

3. What can reasonably be inferred

#	INFERENCE	PREMISES	STRENGTH	WHAT WOULD BREAK IT
I-1	The draft amended complaint cures the specific defect Doc. 35 identified.	(a) Doc. 35 placed the original in type one because each Count incorporated preceding Counts (Doc. 35 at 7); (b) the draft's Counts incorporate only the factual block; (c) <i>Weiland</i> at 1324 holds that structure is not type one.	Strong	A different version having been filed; or the court finding a <i>different Weiland</i> category (types two–four) applies.
I-2	Some of the negative "Principal Only Payment" rows are HELOC draws , not servicing errors.	(a) This is a line of credit; (b) draws increase principal; (c) the 11/16/22 and 02/09/23 negatives have no matching prior credit; (d) the 09/26/23 negative does, and is plainly a reversal.	Moderate	The servicer's transaction-code key showing a separate draw code, which would leave these unexplained.
I-3	The "payment history" enclosed with the 2026-03-02 letter is not the document in the file.	The letter lists a payment history as an enclosure; the statement held bears a 2026-03-10 print timestamp.	Strong	A print job predating the letter with the same timestamp — implausible.
I-4	<i>Lee v. Alachua County</i> , Doc. 35's authority for the pro se one-chance rule, is a non-precedential disposition.	(a) Doc. 35 cites it at 461 F. App'x 859; (b) that reporter carries unpublished dispositions.	Moderate	11th Cir. R. 36-2, which was not obtained. The opinion could not be located in two searches.
I-5	There were likely two distinct foreclosure processes — an SLS-era one from early 2024 and a Shellpoint referral on 2026-01-05 — each requiring its own notices.	(a) Doc. 34 at 3 n.4 describes SLS initiating foreclosure in/after Feb. 2024 and sales "scheduled and postponed"; (b) SRC-012 describes a 2026-01-05 referral; (c) the ledger shows two distinct clusters of foreclosure charges.	Moderate	The 2024 foreclosure file showing one continuous process.

4. What remains unverified

ID	UNRESOLVED QUESTION	WHY IT MATTERS	WHAT RESOLVES IT	OWNER
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U-1	Was an amended complaint filed by 2026-08-21?	Determines whether the case is alive and what the operative pleading is. Everything else is contingent.	PACER/CM-ECF	Human — today
U-2	Is SRC-001 the document filed, if any was?	Sections 1, 3 and 6 of this report analyse SRC-001. If a different version was filed, those analyses describe a draft, not the pleading.	The filed document	Human
U-3	Does a \$5,200.00 wire exist at all?	The performance element of the contract claim and the core of the RESPA/FDCPA payment theories	Client's bank records	Human
U-4	Does an executed loan modification exist?	Two claims and the dual-tracking theory	Client's files	Human
U-5	Is the Mercer Advisors offer/rescission documented?	The largest damages figure in the case	Client's files; subpoena	Human
U-6	Has <i>Vibe Micro</i> n.6's reserved pro se question been resolved since 2018?	Sets the real dismissal risk on a second deficient pleading	Commercial database research	Research specialist
U-7	Good-law status of <i>Weiland</i> and <i>Vibe Micro</i>	No citator in this session; every research row is citator-limited	Shepard's / KeyCite	Human
U-8	Was Shellpoint's "unable to accommodate" statement accurate when made?	Potential § 1692e exposure, or merely impeachment	Alsaadi Decl. (Doc. 27); internal postponement records	Evidence + research
U-9	What do the negative "Principal Only Payment" rows represent?	Determines whether they are irregularities or ordinary draws	Servicer's transaction-code key	Discovery
U-10	Were Plaintiffs' Rule 34 requests (dated 2026-08-19) served before any Rule 26(f) conference?	Rule 26(d)(1) timing; the requests refer to the conference in the future tense	Docket; N.D. Ga. L.R. 16 and 26	Docket + research

5. What additional evidence is needed

GAP	ITEM	WHY BELIEVED TO EXIST	ROUTE	PRIORITY	BLOCKING
GAP-011	Full federal docket sheet and all filings after Doc. 35	Every order references the docket	PACER	1	Yes
GAP-002	\$5,200.00 wire confirmation; complete servicing file for both loan numbers from both servicers	Pleaded as "verified," implying a document	Client file → discovery	1	Yes
GAP-001	Origination and closing file: settlement statement, disbursement schedule, wire confirmations, creditor payoffs	Every closed loan generates these; Judge Bagley said the court needs them	Client file → discovery	1	Yes

GAP-005	Executed loan modification; complete loss-mitigation application; all denials	Pleaded; sought at SRC-004 Req. 10	Client file → discovery	1	Yes
GAP-008	Mercer Advisors offer and written rescission; any adverse-action notice	Pleaded with a specific figure	Client file → subpoena	1	Yes
GAP-009	Recorded Security Deed and Assignment; original Note with indorsements	Pleaded by book and page — publicly recorded	Public record — obtainable today	1	Yes
GAP-007	Published foreclosure advertisements with publication affidavits	Georgia law requires publication	Public record	2	Yes
GAP-004	Credit reports; ACDV/e-OSCAR records; investigation records	Specific figures pleaded from specific months	Client file → discovery	2	Yes
GAP-003	The NOEs/RFI's themselves with proof of delivery to the designated address	Pleaded; sought at SRC-004 Req. 11	Client file → discovery	2	Yes
GAP-010	Servicer's transaction-code key and draw history	Every servicing system has one	Discovery	2	No
GAP-012	Forsyth County orders of 2026-03-03 and 2026-03-06 (Doc. 26-1 at 102–109)	Quoted in Doc. 34	Public record	2	No
GAP-006	Alsaadi Declaration (Doc. 27)	Cited at Doc. 34 at 4	PACER	3	No

The pattern worth noticing: of the five blocking gaps, ****three** are most likely

in the client's own files (**GAP-002, GAP-005, GAP-008**) and two are public

records obtainable today** (GAP-009, GAP-007). Only GAP-010 and parts of

GAP-003/004 genuinely require discovery. A great deal of this case can be moved

forward this week without a single discovery request.

6. Which arguments appear viable

ARGUMENT	ELEMENTS AT RISK	SUPPORT	ADVERSE AUTHORITY	ASSESSMENT
The amended pleading cures the Doc. 35 defect	None on type one	<i>Weiland</i> , 792 F.3d at 1324	<i>Magluta</i> , 256 F.3d at 1284 — but only where counts incorporate <i>both</i> a factual block <i>and</i> preceding counts, which the draft does not	Strong. The single most secure position in the matter. Fix the numbering and Lendage first.

RESPA payment-application error — the retained \$1,899.56	The NOE/RFI predicate (GAP-003)	E-10: the defendants' own ledger shows money received 2025-05-17, never reversed, never applied, still in suspense ten months later	None located; the three reversed payments cut the other way but do not touch this one	Viable and documented. This is the payment theory that should carry the claim, not the \$5,200.00 wire.
FDCPA coverage of Shellpoint	Default-at-acquisition; the one-year period	E-12: Shellpoint's own "is a debt collector" disclosure	15 U.S.C. § 1692k(d) bars conduct before 2026-03-02 absent a continuing-violation or discovery theory	Viable on status. The limitations period needs its own research.
Fee and cost challenge	Authorization under the security deed	E-9: a documented, itemised series of charges 2024–2026 against a frozen principal	The security deed likely authorizes default costs — not yet read (GAP-009)	Viable, and unusually well documented for this stage.
Declaratory relief on amount owed and authority to foreclose	None immediately	E-3 (the 60-day obligation) shows a live controversy the court itself recognized	Doc. 34 at 25 on mootness applies to <i>injunctive</i> , not declaratory, relief	Viable. Declaratory relief survives the mootness reasoning that defeated the injunction.
Enforcing the 60-day notice obligation	Notice must actually be caught	E-3	None — it is an order of the district judge	Strong, and currently the most valuable thing Plaintiffs hold. It is the practical substitute for the injunction that was denied.

7. Which arguments appear weak or foreclosed

Foreclosed — decided in this case or by controlling authority:

ARGUMENT	WHY	CITATION
Remand on prior exclusive jurisdiction	Decided against Plaintiffs	Doc. 34 at 20
Remand on the unanimity rule	Decided; and a unanimity defect is procedural, not jurisdictional	Doc. 34 at 23–25
Lendage as a defendant in the original complaint	Held not a defendant	Doc. 34 at 21, 24–25
A preliminary injunction with no sale scheduled	Denied as moot; the reasoning recurs on identical facts	Doc. 34 at 25

Weak — not decided, but the record or the law runs against them:

ARGUMENT	WHY	SALVAGEABLE?
The uncredited \$5,200.00 wire	Not merely unsupported — the defendants' own ledger affirmatively omits it, and that ledger records far smaller credits	Only with GAP-002. Until then, lead with the documented \$1,899.56 instead.
Breach of an executed loan modification	No document, and Doc. 34 at 3 n.4 records loss mitigation as unsuccessful	Only with GAP-005. If no executed agreement exists, withdraw rather than replead.

§ 1024.41 dual tracking	Requires a <i>complete</i> loss-mitigation application; none is documented	Only with GAP-005
FCRA § 1681s-2(b)	The CRA-notice element — the one most often fatal — is entirely undocumented. Direct disputes to the furnisher do not trigger the duty.	Only with GAP-004
Attempted wrongful foreclosure	Both the publication element and the special-damages element are undocumented	With GAP-007 and GAP-008 — both obtainable
Slander of title	Falsity and malice as to a recorded instrument, without the instrument	With GAP-009
GFBPA	Generally reaches the consumer marketplace rather than a private two-party transaction, and the O.C.G.A. § 10-1-399(b) ante litem notice is undocumented	Needs its own research before repleading
Naming Lendage in the caption with no count against it	Doc. 34 at 22 n.11 found the grievances are not directed at Lendage; a caption-only defendant invites a Rule 8 notice objection	Plead a count or remove it

8. What should be investigated next

#	STEP	OWNER	SUPPORTS	BY WHEN	WHY THIS ORDER
1	Pull the full PACER docket; establish whether an amended complaint was filed by 2026-08-21, at what number and date	Human	U-1, U-2 — everything	Today	Every other item is contingent on it
2	Ask the client for three documents: the \$5,200.00 wire confirmation; the executed loan modification; the Mercer Advisors offer and rescission	Human	U-3, U-4, U-5	This week	Three of five blocking gaps, all likely already in hand
3	Pull the recorded Security Deed and Assignment from the Forsyth County Clerk; pull the published foreclosure advertisements	Human (authorization HD-8)	GAP-009, GAP-007	This week	Public records; no discovery needed
4	Renumber the amended complaint's paragraphs continuously 1–46; resolve Lendage's status	Human	I-1	Before filing, or before the response deadline	Cheap, and removes avoidable grounds for a renewed motion
5	Research the pro se question reserved by <i>Vibe Micro</i> n.6	Research specialist	U-6	Next	Sets the real dismissal risk
6	Research whether the retained-unapplied \$1,899.56 states a § 1024.35 payment-application error, and the NOE-delivery question (CFPB portal vs. designated address)	Research specialist	The strongest documented theory	Next	Wave 2 — depends on the evidence result

7	Run the citator pass on <i>Weiland</i> and <i>Vibe Micro</i>	Human	U-7	Before any filing	Owed on every research row
8	Research FDCPA § 1692k(d) limitations and any continuing-violation theory	Research specialist	The FDCPA claim's reach	Next	Identified as a known weakness
9	Obtain N.D. Ga. L.R. 16 and 26, and both judges' standing orders	Human	U-10, OFQ-4	Before any discovery deadline is asserted	Local practice displaces national defaults

9. Human decisions required

ID	DECISION	WHY IT CANNOT BE DECIDED FROM THE RECORD	BLOCKING	DEADLINE PRESSURE
HD-1	Confirm whether the amended complaint was filed by 2026-08-21	No PACER access; CourtListener's docket record is empty	Yes	Extreme — 31 days past
HD-2	Confirm whether the filed document is SRC-001	SRC-001 is an unexecuted draft with template placeholders	Yes	High
HD-5	Does a \$5,200.00 wire confirmation exist?	Only the client knows; the ledger does not contain it	Yes	High
HD-6	Does an executed loan modification exist?	No document; the court's recitation runs the other way	Yes	High
HD-7	Is the Mercer Advisors offer/rescission documented?	Largest damages figure; no document	Yes	High
HD-3	Has any notice triggering the 60-day period been given?	Requires the docket and the client's mail	No	Ongoing
HD-8	Authorize retrieval of recorded instruments and published advertisements	Outward-facing acts need authorization	No	Low
HD-9	Run a citator on <i>Weiland</i> and <i>Vibe Micro</i>	No citator in this session	No	Before filing
HD-10	Renumber continuously / seek leave to correct	A litigation judgment	No	Before filing
HD-11	Plead a count against Lendage or remove it from the caption	A party-structure decision	No	Before filing
HD-4	Obtain local rules and standing orders	Not available to this session	No	Before discovery

10. Reconciliations performed

#	CONFLICT	LEVEL	RESOLUTION	REJECTED VIEW RETAINED
R-1	Evidence recorded the "Paragraphs 1 through 46" cross-reference as a material pleading defect (CON-007); research concluded the same cross-reference method is the approved Weiland structure (E-15).	0 — not a real conflict	They address different things. Research answers whether incorporating a <i>factual block</i> is a type-one defect (it is not). Evidence answers whether <i>this document's rendering</i> makes "46" identifiable (it does not, because numbering restarts by section). Both are right, and together they give the precise fix: keep the method, renumber continuously.	Neither — both retained.
R-2	Docket reported the posture at medium ; evidence and research both analysed SRC-001 as though it were the operative pleading.	1 — source-level	The docket specialist is right and its limit governs both other results. SRC-001 is a Drive draft with unfilled signature placeholders; the manifest cannot show it was filed. Sections 1, 3 and 6 of this report are conditional on HD-2. Stated at the top of §4 rather than buried.	The implicit assumption that SRC-001 is operative is recorded as U-2, not silently adopted.
R-3	Evidence's finding 15 stated flatly that the annotated spreadsheet SRC-007 mischaracterises the ledger, while the manifest marks SRC-007 access_status: partial (preview rows only).	4 — confidence	Rebuilt from the weakest link. The specific correction is sound: the 2022-08-05 row is the opening-balance booking, verified against SRC-013 which was read in full. The general implication — that SRC-007's annotations are unreliable as a whole — is not, because only two annotations were read. Restated here as: <i>two annotations were checked, one is wrong, and the rest are unreviewed.</i> The register row (CON-003) had already capped itself at medium ; the prose had not.	The narrative overreach is recorded as defect D-04, not quietly edited away.
R-4	Evidence classified CON-005 (Shellpoint's "unable to accommodate" statement, followed by a voluntary postponement within a day) as impeachment-only .	3 — significance	Not an error; a legal question the evidence specialist is not positioned to answer. Whether the statement is actionable under 15 U.S.C. § 1692e is different from whether it is useful on cross. Converted to U-8 and queued for research; carried in §4 with both positions intact.	Both classifications retained pending research.
R-5	Evidence recommended replacing the \$5,200.00 theory with the documented \$1,899.56 retained-unapplied payment; no result assessed whether that states a claim.	Gap in my own wave plan, not a conflict	My fault, not a specialist's: I issued no assignment pairing the evidence finding with the legal standard. Queued as step 6 in §8 — a Wave 2 task that needs both the evidence result and a RESPA-standard research assignment.	n/a

11. Limits of this report

- **The record stops on 2026-07-31.** No source shows anything after Doc. 35.

Every statement about the current posture is subject to that.

- **No PACER access.** The docket record obtained (SRC-014) contains zero entries and zero documents.

- **No citator.** Good-law status is unconfirmed on every authority cited. Two authorities (*Magluta*, *Barmapov*) were not opened and one (*Lee v. Alachua County*) could not be located; **no conclusion in this report depends on any of the three.**

- **Partial sources.** SRC-004 (Rule 34 requests) and SRC-007 (annotated spreadsheet) were read only in part. SRC-006/SRC-013 (the ledger) is a space-aligned print whose columns are ambiguous on several rows; those rows are marked [COL?] and **no finding above rests on them.**

- **Excluded by scope.** The merits of the RESPA, FCRA, FDCPA and Georgia claims were not researched — only the pleading-structure question was. Damages quantification, discovery planning, and securitization analysis were out of scope for Phase 1.

- **Nothing has been filed, served, sent, or transmitted,** and no original case document has been modified, renamed, moved, or deleted. Source integrity was verified by SHA-256 before and after this work.